



Builders Grade Material For Fencing

Ten Year Prorated Limited Warranty

Danielle Fence Mfg , warrants its Builders Grade Material, subject to the conditions and limitations listed herein, to be free from defective workmanship and materials, and when subject to normal and proper use, it is further warranted against peeling, flaking, rusting, blistering and corroding, abnormal weathering, and abnormal discoloration of surfaces. Danielle Fence warrants only those products manufactured by it and the warranty extends only to the original consumer purchaser.

WARNING: Danielle Fence and its employees are not qualified to approve, recommend or advise as to the suitability of Builders Grade Material for all possible end use applications. Your local code authority or fire marshal's office should be consulted as to its safety for its intended uses.

THE FOREGOING EXPRESS WARRANTY INCLUDES ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE, OR OF MERCHANTABILITY. NO INCIDENTAL OR CONSEQUENTIAL DAMAGES WILL BE PAID. NO STATEMENT, REMARK, AGREEMENT, REPRESENTATION, PROMISE OR UNDERSTANDING, ORAL OR WRITTEN, MADE BY DANIELLE FENCE MFG, OR ANY AGENT THEREOF, WHICH IS NOT CONTAINED OR AUTHORIZED HEREIN, WILL BE RECOGNIZED BY DANIELLE FENCE MFG FOR CONSUMER PURCHASES IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE ARE NOT EXCLUDED. SOME STATES MAY NOT ALLOW THE LIMITATION OF INCIDENTAL OR CONSEQUENTIAL DAMAGES OR LIMITATIONS ON HOW LONG AN IMPLIED WARRANTY LASTS, SO SUCH LIMITATIONS MAY NOT APPLY TO YOU. THIS WARRANTY GIVES SPECIFIC LEGAL RIGHTS, AND THERE MAY ALSO BE OTHER LEGAL RIGHTS WHICH VARY FROM STATE TO STATE.

By acceptance and use of this product, purchaser agrees that Danielle Fences' liability and the purchaser's exclusive remedy for breach of any warranty shall be limited in all events to replacement of any section or part of the product which shall be returned to Danielle Fence and which is found to be defective. All claims must be presented within a reasonable time after discover. Liability for replacement of any such section or part shall be based upon either the prevailing cost of Builders Grade Material in your geographic area at the time of replacement, or the original purchase price, whichever shall be less. Limits of liability decrease 10% per year from date of purchase. Danielle Fence shall have the right to elect to refund a monetary amount which shall be equal to Danielle Fences' liability for replacement.

This warranty does not cover the cost of installation of any defective product or the cost of installation of any replacement product furnished under the terms of the warranty.

LIMITATIONS: Danielle Fence shall not be liable for and this warranty does not apply to any failure, defect or damage resulting from or connected with the following: a.) Misuse, neglect or improper storage. b.) Improper application or application not in strict adherence to written instructions by Danielle Fence . c.) Impact or foreign objects, fire, hurricane, tornado or other violent storm or casualty, or acts of God. d.) Painting of the surface of the product. e.) Discontinuation or modification of Builders Grade Material including its color. f.) Adverse effects of air pollution and normal weathering of surfaces.

Notice of any defect must be given to Danielle Fence , in writing. Send notice to: Danielle Fence Mfg. 4855 SR 60 West, Mulberry, FL 33860

Effective Date 4-15-2011